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| **PETITION TO CHANGE NAME OF MINOR G. L. c. 210, § 12** | Docket No. | **Massachusetts Trial Court Probate and Family Court** |

**In the Matter of:**

_____ First Name _____ Middle Name _____ Last Name

**(current legal name of minor child)**

_____ **Division**

**The child MUST reside in the county where this petition is filed.**

## INFORMATION ABOUT THE MINOR CHILD

**1.** The petitioner, _____ First Name _____ Middle Name _____ Last Name , is a minor.

**(print child's current legal name here)**

**2.** The petition is presented on behalf of the child by *(check all that apply)*:

☐ legal mother/parent 1 ☐ legal father/parent 2 ☐ court-appointed guardian(s)

**3.** Child's place of birth: _____ City/Town _____ State Child's date of birth: _____ Date

Child's current age: _____

**4.** Child's current address:

_____ (Address) _____ (Apt, Unit, No. etc.) _____ (City/Town) _____ (State) _____ (Zip)

☐ Check here if current address is a facility under the supervision of the Massachusetts Department of Youth Services.

**FORM ALERT: The child must reside in the county where this petition is filed.**

**Reside** is where the child currently lives.

**5.** Has the child ever legally changed his/her name prior to this petition? ☐ No ☐ Yes *(if **yes**, please complete the following)*

From: _____

To: _____

Reason: _____

**FORM ALERT: A certified copy of the child's birth certificate and a certified copy of any prior name change must be filed with this petition.**

☐ Check here if you would like all certified copies of documents filed with the court returned to you after review and processing.

## INFORMATION ABOUT THE MINOR CHILD'S LEGAL PARENTS

**6.** The child's legal parents (as listed on the child's birth certificate) are:

| Parent 1 | Parent 2 |
|---|---|
| _____ Name | _____ Name |
| _____ (Address) _____ (Apt, Unit, No. etc.) | _____ (Address) _____ (Apt, Unit, No. etc.) |
| _____ (City/Town) _____ (State) _____ (Zip) | _____ (City/Town) _____ (State) _____ (Zip) |
| Primary Phone #: _____ | Primary Phone #: _____ |
| Email Address: _____ | Email Address: _____ |

**FORM ALERT: If the address or whereabouts of legal parent(s) is unknown you must file a Motion for Service by Alternate Means and Affidavit of Diligent Search (CJP 31) with a Military Affidavit (TC0002).**

☐ Check here if only one parent is listed on the child's birth certificate.

☐ Check here if any legal parent listed on the child's birth certificate is deceased *(attach a copy of the death certificate(s)).*

☐ Check here if any legal parent listed on child's birth certificate has had their parental rights terminated in a prior court proceeding *(attach proof)*.

## INFORMATION ABOUT THE MINOR CHILD'S GUARDIAN (IF ANY)

**7.** Does the child have a court-appointed temporary or permanent guardian? ☐ No ☐ Yes *(if **yes**, complete the following and attach proof unless already on file with this court.)*:

| Guardian | Co-Guardian |
|---|---|
| Name | Name |
| (Address) (Apt, Unit, No. etc.) | (Address) (Apt, Unit, No. etc.) |
| (City/Town) (State) (Zip) | (City/Town) (State) (Zip) |
| Primary Phone #: | Primary Phone #: |
| Email Address: | Email Address: |

**FORM ALERT: If the address or whereabouts of the guardian(s) is unknown you must file a Motion for Service by Alternate Means and Affidavit of Diligent Search (CJP 31) and a Military Affidavit (TC0002).**

## INFORMATION ABOUT ASSENTS

Complete **ALL** of the following:

**8.** The minor child who is 12 years of age or older assents to the petition *(see notarized assent on this petition)*.

☐ Not applicable. The minor child is not 12 years of age or older.

**9.** The legal parent 1

☐ assents to the petition *(see notarized assent on this petition or separate notarized assent form filed with this petition).*

☐ does not assent. Explain:

**10.** The legal parent 2

☐ assents to the petition *(see notarized assent on this petition or separate notarized assent form filed with this petition).*

☐ does not assent. Explain:

**11.** All court-appointed guardians

☐ assent to the petition *(see notarized assents on this petition or separate notarized assent forms filed with this petition.)*

☐ do not assent. Explain:

☐ Not applicable. There is no court-appointed guardian.

## INFORMATION ABOUT THE MINOR CHILD'S PROPOSED NEW NAME

**12.** It is in the best interests of the minor child to change the child's name:

To: First Name Middle Name Last Name

**13.** A change of name is sought for the following reason:

## AUTHORIZATION TO CONDUCT A CARI AND WMS CHECK

**14.** I/We authorize the court to conduct a Court Activity Record Information (CARI) and Warrant Management System (WMS) check on any names used by the child, if the child is 12 years or age or older, by submitting the attached Court Activity Record Information and Warrant Management System Release Request Form (CJP 34).

## OTHER REQUESTS (OPTIONAL)

**15.** If there is a hearing on this petition, I request an interpreter for *(check all that apply)*:

☐ minor child ☐ parent 1 ☐ parent 2 ☐ court-appointed guardian(s)

Language(s): _____

**16.** ☐ The minor child would like to request that court staff use these pronouns while they are at court: _____

## IMPORTANT - PLEASE READ

If the minor child who is the subject of this petition is 12 years of age or older, the child's written notarized assent must be obtained below **before filing this petition**. See Uniform Practice XXXV.

## NOTARIZED SIGNATURE OF MINOR CHILD, 12 YEARS OF AGE OR OLDER

Date: _____ Sign here in the presence of a Notary Public → _____

_____
Type or Print Name of the Minor Child,
12 years of age or older

On this _____ day of _____ , 20 ____ , in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory
(Name of Document Signer)
evidence of identification, which were _____ , to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

## NOTARIZED SIGNATURE OF MINOR CHILD'S LEGAL PARENT(S)

Date: _____ Sign here in the presence of a Notary Public → _____

_____
Type or Print Name
indicate if parent 1 or parent 2

On this _____ day of _____ , 20 ____ , in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory
(Name of Document Signer)
evidence of identification, which were _____ , to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

Date: _____ Sign here in the presence of a Notary Public → _____

_____
Type or Print Name
indicate if parent 1 or parent 2

On this _____ day of _____ , 20 ____ , in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory
(Name of Document Signer)
evidence of identification, which were _____ , to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

**NOTARIZED SIGNATURE OF MINOR CHILD'S COURT- APPOINTED GUARDIAN(S), IF ANY**

Date: _____ Sign here in the presence of a Notary Public → _____

_____
Type or Print Name of guardian

On this _____ day of _____ , 20 ____ , in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory
(Name of Document Signer)
evidence of identification, which were _____ , to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

Information on Attorney for Petitioner, if any

_____
Signature of Attorney

_____
(Print name)

_____ _____
(Address) (Apt, Unit, No. etc.)

_____ _____ _____
(City/Town) (State) (Zip)

Primary Phone #: _____

B.B.O. # _____

Email: _____